

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: Fay Dahlia Matthew, Plaintiff

AND:

Vince's No Frills, Defendant

BEFORE: Pollak J.

COUNSEL: *Piera Segreto*, for the Plaintiff

No one appearing for the Defendant

HEARD: November 14, 2017

REASONS FOR DECISION

[1] In this action the plaintiff claims damages for injuries she suffered when she fell while shopping at Vince's No Frills (the defendant).

[2] The plaintiff brought a motion for default judgement against the defendant. On that motion, Penny J. held as follows:

The defendant was noted in default. There is a claim for unliquidated damages so the plaintiff has brought her motion for default judgment in this court.

Faieta J. adjourned the motion for further service.

I am prepared today to proceed on the basis that the claim has come to the attention of Vince Cappiello.

However, I have grave misgivings about granting some of the damages sought. This is because, in my view, there is an insufficient evidentiary basis to grant any of the unliquidated damages claimed.

Judgment to issue in favour of the plaintiff on liability. Judgment also to issue in favour of the plaintiff on the liquative damages claims in the amount of \$740.92 together with disbursements to date of \$1,292.40.

There will have to be a short undefended trial to prove the other, unliquidated damage claims.

There must be evidence from a properly qualified medical expert that there is a causal relationship between the plaintiff's slip and fall and the loss of her child.

There must be evidence upon which to quantify any loss of income claim.

There must also be evidence to support the need for any amount of any future care costs.

The costs of these proceedings, other than the disbursements already awarded above, shall be for the judge hearing the undefended trial. [Emphasis added.]

[3] This is the trial of the assessment of the damages the plaintiff claims against the defendant of:

- (a) payment of general damages in the range of \$65,000;
- (b) payment of \$695.92 on account of OHIP's subrogated interest;
- (c) payment of \$45 for ambulance expenses;
- (d) payment for loss of earning capacity in the range of \$10,000;
- (e) payment for past and future medical and housekeeping expenses in the range of \$25,000; and
- (f) payment of interest, disbursements, and costs on a partial indemnity basis.

[4] At this trial the court heard the evidence of the plaintiff but, with respect to the endorsement of Penny J. to which I have referred above, the plaintiff did not introduce any "properly qualified medical expert" evidence. Rather, the plaintiff sought to rely on medical notes she had attached to her affidavit that she relied on in her motion for default judgment. There were no medical reports.

[5] There was no evidence with respect to the cost of any future medical expenses or expenses such as housekeeping. The plaintiff relies on the medical notes alone without any evidence to support these notes to prove the quantum of her damages. There is no evidence on what the notes mean. Some of these notes are illegible, and written in medical shorthand. This court is not in a position to interpret the meaning or significance of many of the notes. Further, there is no evidence on what her limitations will be with respect to future employment.

[6] Counsel for the plaintiff indicated to the court that the plaintiff has very limited financial means and that is why, notwithstanding the endorsement of Penny J., the plaintiff did not introduce any proper medical evidence. As a result, the court has little evidence other than the evidence of the plaintiff with respect to her views on her pre-accident physical condition and her evidence on how she felt after the accident.

[7] Further, there is no evidence of “causality” between the plaintiff’s fall and the majority of her physical symptoms and complaints after her fall. Tragically, the plaintiff, who was pregnant at the time of her fall, lost her child several months after her fall. She testified that she developed “gestational diabetes” after her fall, and relies on the fact that she did not have gestational diabetes before her fall to prove that the fall caused her gestational diabetes and the loss of her child. She connects her diagnosis of depression with this series of events.

[8] The plaintiff must not only prove that the slip and fall caused her injury, she must prove that it caused the injuries for which she claims compensation, including gestational diabetes, the loss of her unborn child, and depression, as well as the resulting damages flowing from such injuries. Unfortunately, due to a lack of proper medical evidence, she has failed to establish such a connection between the slip and fall and the majority of her claims.

[9] Causation has been called “an expression of the relationship that must be found to exist between the tortious act of the wrongdoer and the injury to the victim in order to justify compensation of the latter out of the pocket of the former”: *Snell v. Farrell*, [1990] 2 S.C.R. 311, at p. 326. The plaintiff bears the onus of proving that “but for” the negligent act or omission of the defendant, the injury would not have occurred. In limited circumstances, when it would be impossible for the plaintiff to prove that the defendant’s negligence caused her injury, the “material contribution” test may be applied: *Hanke v. Resurfice Corp.*, 2007 SCC 7, [2007] 1 S.C.R. 333. In other circumstances, where neither party is able to lead evidence that the breach of duty caused the loss or did not cause the loss, causation may be inferred: *Haag v. Marshall* (1989), 39 B.C.L.R. (2d) 205 (B.C.C.A.). But when the plaintiff chooses not to present available evidence, in other words, if the plaintiff could have led evidence about the effects flowing from the breach but did not, then it would be inappropriate to draw an inference of causation: *Coram v. Innovative Security Management (1998) Inc.*, 2012 CarswellOnt 17285, at paras. 17, 19, citing *Haag*. In this case, there was no evidence that causation was either impossible to prove or that the plaintiff was unable to lead evidence of causation; therefore, the “but for” test applies.

[10] The plaintiff’s medical evidence (which I have referred to above), in the form of exhibited notes to her own affidavit, would establish only, if it had been properly adduced and not just introduced by the Plaintiff as attachments to her affidavit, that she suffered lumbar strain and right hip strain as a result of her slip and fall. In a letter dated August 30, 2016, Dr. Otto, who treated the plaintiff, stated that on August 6, 2013, he examined her. He notes that “[h]er accident-related injuries were lumbar spine strain and right hip strain”. While he mentions her stillbirth, depression, and pain, he does not connect it to her “accident-related injuries”. However, he does opine as follows:

As a result of her injuries, she required help with housekeeping activities that require lifting, bending or standing for long periods of time. It is my estimate that she required housekeeping help for at least one year following the accident.

[11] There is no medical evidence to support a finding that but for the slip and fall the plaintiff would not have been diagnosed with gestational diabetes, lost her unborn child, and developed

depression. There is evidence that, as a result of the slip and fall, she suffered lumbar spine strain and right hip strain that required housekeeping help.

[12] As a result of these injuries, the plaintiff claims loss of earning capacity and past and future care costs. The plaintiff did not present evidence of past or future medical or housekeeping expenses. She presented no evidence of her earning capacity. She has presented no evidence to quantify her loss of income claim or support her need for future care costs, as required by Penny J.'s endorsement.

[13] In her affidavit, the plaintiff states, "I require assistance from my family to complete heavier housekeeping tasks I usually performed before my accident." She makes no mention of hiring housekeeping assistance except that if her children were not at home to assist her, she would not be able to afford housekeeping assistance. In this regard, her own evidence from Dr. Otto is that "she required housekeeping help for at least one year following the accident." Regarding her earning capacity, the only evidence is of the plaintiff, who states in her affidavit, "I do not know if I will be able to find and hold a job given my physical and emotional difficulty from the accident."

[14] In *Graham v. Rourke* (1990), 75 O.R. (2d) 622 (Ont. C.A.), at p. 634, Doherty J.A. stated that the plaintiff need not prove future pecuniary loss on a balance of probabilities:

A trial judge who is called upon to assess future pecuniary loss is of necessity engaged in a somewhat speculative exercise ... The ultimate questions to be determined - will the plaintiff suffer future loss and, if so, how much? - cannot be proved or disproved in the sense that facts relating to events which have occurred can be proved or disproved. A plaintiff who seeks compensation for future pecuniary loss need not prove on a balance of probabilities that her future earning capacity will be lost or diminished or that she will require future care because of the wrong done to her. If the plaintiff establishes a real and substantial risk of future pecuniary loss, she is entitled to compensation. [Citations omitted.]

[15] The plaintiff has failed to prove that there is a real and substantial risk of future pecuniary loss, and has not provided sufficient evidence to quantify, or indeed establish, her alleged care costs on a balance of probabilities.

[16] The court is left with the assessment of damages resulting from a slip and fall (without proper medical evidence) that resulted in lumbar spine strain and right hip strain. On this default judgment trial, the defendant is liable in negligence for those injuries. The plaintiff has not proved a causal connection to her other alleged injuries, nor has she provided sufficient evidence of her claims for loss of earning capacity and past and future care costs. However, she still suffered injury as a result of the defendant's negligence.

[17] In such circumstances, notwithstanding the lack of the introduction of proper medical evidence, there is no challenge to her allegations of injury, nominal damages may be granted where the evidence discloses actual loss without providing the basis for quantifying it: Harvey McGregor, *McGregor on Damages*, 18th ed. (London: Thomson Reuters, 2009), at para. 10-004.

The Supreme Court of Canada has stated that “difficulty or impossibility of ascertaining damages with certainty does not render damages unassessable”: *Kinkel v. Hyman*, [1939] S.C.R. 364, at p. 380 (S.C.C.), referring to *Chaplin v. Hicks*, [1911] 2 K.B. 786 (Eng. C.A.).

[18] The plaintiff is therefore entitled to the following:

- nominal damages of \$3,000; and
- payment of \$45 for ambulance expenses.

COSTS

[19] The Plaintiff has requested costs of \$2,697.90.

[20] I am required to award costs that are reasonable and fair. See *Boucher v. Public Accountants Council for the Province of Ontario* (2004), 71 O.R. As the Plaintiff has been the successful party in this undefended Application and having considered the submissions of the Plaintiff and the factors set out in Rule 57.01 of the *Rules of Civil Procedure*, R.R.O. 1990, Reg. 194 (3d) 291 (C.A.), I award costs to the Plaintiff in the amount of \$2,697.90.

Pollak J.

Date: January 4, 2018